

23NWCV03743 23NWCV03743

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Case Number: 23NWCV03743 Hearing Date: September 18, 2026 Dept: P

CRAIG MARTIN v. CITY OF
LA HABRA HEIGHTS

CASE NO.: 23NWCV03743

HEARING: 09/18/2026 @ 9:30 AM

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TENTATIVE ORDER

Plaintiff's motion for leave to amend is GRANTED.

Plaintiff is ORDERED to file the proposed FAC attached to the moving papers within 5 days of this Order.

Moving party to give notice.

Plaintiff Craig Martin, as Trustee of the Craig & Vetta
Martin Family Trust (Plaintiff) moves for leave to file a first amended
complaint (FAC).

Background

On November 20, 2023, Plaintiff filed this nuisance action against City of La Habra Heights (City) and Does 1 through 20. Plaintiff and his family occupy the residential premises located at 1212 Kashlan Road, in the City of La Habra Heights (Property) and owned by the Craig & Vetta Martin Family Trust (Trust). (Complaint, ¶¶ 1, 7.) This action arises out of a drainage

pipe, approximately 36 inches in diameter (Drainage Pipe) which runs beneath the Property and is currently corroding, in need of repair, and causing sink holds in the backyard of the Property. (Complaint, ¶¶ 8-11.) The complaint alleges that Plaintiff has made multiple attempts to contact the City which has disclaimed responsibility.

(Complaint, ¶ 13.) The complaint alleges that a title report shows that the Drainage Pipe is the City's responsibility and that there is no easement permitting the Drainage Pipe to be located under the Property. (Complaint, ¶¶ 15-18.)

The complaint asserts four causes of action: (1) nuisance, (2) trespass, (3) enforcement of easement rights, and (4) declaratory relief.

Legal Standard

"The court may...in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code." (Code Civ. Proc., § 473 subd. (a).)

California Rules of Court, rule 3.1324(a) provides: "A motion to amend a pleading before trial must:

(1) Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments;

(2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and

(3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located."

California Rules of Court, rule 3.1324(b) requires a separate declaration accompany the motion. The separate declaration must include: (1) the effect of the amendment; (2) why the amendment is necessary

and proper; (3) when facts giving rise to the amended allegations were discovered; and (4) the reasons the request for amendment was not made earlier. (Cal. Rules of Court, rule 3.1324(b).)

“If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” (Morgan v. Superior Court of California (1959) 172 Cal.App.2d 527, 530.)

Discussion

Plaintiff moves for leave to file a FAC. Plaintiff seeks to update allegations regarding progressive damages, pleads compliance with the Government Claims Act, and adds new legal theories.

In compliance with California Rules of Court, rule 3.1324(a), Plaintiff explains the allegations to be added and attaches a clean and red-lined copy of the proposed FAC. (Castillo Decl., ¶ 13, Exhs. A, B.) The proposed FAC adds causes of action for dangerous condition of public property and negligence. (Castillo Decl., ¶ 9.)

In compliance with California Rules of Court, rule 3.1324(b), Plaintiff explains that “[s]ince the original complaint was filed, the alleged damage has continued and expanded. Plaintiff reports that the sinkhole has destroyed substantial portions of the backyard, damaged the swimming pool, impaired the use and enjoyment of the property, created a hazard for his minor children, and diminished the property’s value.” (Castillo Decl., ¶ 4.) Plaintiff also explains that on June 3, 2026, Plaintiff presented a written claim to the City under Government Code sections 910, et seq. describing the municipal drainage system, sinkhole, and alleged dangerous condition. (Castillo Decl., ¶¶ 6-7, Exh. C.) Plaintiff received a rejection on July 16, 2026. (Castillo Decl., ¶ 8, Exh. D.) Plaintiff explains that “[l]eave to amend was not requested earlier because Plaintiff and counsel continued investigating and documenting the progressive damage, including Defendant City of La Habra Heights expert report on the storm drain obtained on June 25, 2026.” (Castillo Decl., ¶ 11.)

In opposition, City argues that Plaintiff’s motion is

untimely. City argues that it is prejudiced because Plaintiff seeks to add claims three years after filing the initial complaint which will lead to additional discovery and preparation costs.

In reply, Plaintiff argues that Plaintiff does not show actual prejudice since additional discovery and costs of preparation are not sufficient.

The Court agrees that the timing does not warrant denial of leave to amend. As shown by Plaintiff, the claims arise out of the same general facts and continuing damage after the initial complaint.

City further argues that the proposed claims are futile because the claims are barred under the applicable statute of limitations and Plaintiff failed to present a timely claim under the Government Code.

City's challenges to the claims presentations requirements and Plaintiff's responsive arguments reflect that the arguments require more extensive analysis and the viability of the new claims should be reserved for a demurrer or motion for judgment on the pleadings. (See *Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048; *Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 760 ["[T]he better course of action would have been to allow [plaintiff] to amend the complaint and then let the parties test its legal sufficiency in other appropriate proceedings."].)

Accordingly, Plaintiff's motion for leave to amend is GRANTED. Plaintiff is ORDERED to file the proposed FAC attached to the moving papers within 5 days of this Order.